

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

SAMSUNG ELECTRONICS AMERICA, INC., *Complainant*

v.

ORIENT OVERSEAS CONTAINER LINE LIMITED AND OOCL
(EUROPE) LIMITED., *Respondents and Third-Party
Complainants*

v.

SAMSUNG ELECTRONICS COMPANY, LTD., *Third-Party
Respondent.*

DOCKET NO. 24-17

Served: August 5, 2025

ORDER OF: Richard AMBROW, *Administrative Law Judge.*

AMENDED SCHEDULING ORDER

On July 1, 2025, I issued the Scheduling Order (the “July 1 SO.”) In the July 1 SO, I required the parties to provide a joint status report on the first business day of each month. On August 1, 2025, Samsung Electronics America, Inc. (“SEA”), and Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited (collectively, “OOCL”) filed their joint status report (“JSR2”) pursuant to the July 1 SO.

Discovery Schedule. On June 26, 2025, the parties filed their first joint status report (“JSR1”). In JSR1, the parties proposed that discovery should commence July 18, 2025, fact discovery should close on February 13, 2026, and expert discovery should close on May 8, 2026. The July 1 SO noted that the Commission Rules provide that discovery should be completed within 150 days of the service of the respondent’s answer to the complaint. (46 C.F.R. § 502.141(g)). Accordingly, the July 1 SO required the parties to commence discovery immediately, and to propose a scheduling order that contemplates the completion of discovery within 150 days from the issuance of the July 1 SO, or November 28, 2025.¹

¹ The 150-day discovery period expires November 27, 2025, which is a holiday. The deadline is thus extended until the following business day. (46 C.F.R. § 502.101). In JSR2, the parties request a discovery schedule that closes December 1, 2025, instead of November 28, 2025. I find this to be a reasonable request.

In JSR2, the parties set forth a proposed discovery schedule that proposes that document discovery be completed by September 30, 2025, fact depositions be completed by October 31, 2025, and expert discovery be completed by December 1, 2025. The parties, however, note that they believe a discovery extension will be required. In addition, both SEA and OOCL report that they served interrogatories and requests for document production in July 2025, and both parties have started collecting documents.

I understand that this case potentially involves a large amount of data, as well as possibly more than two dozen depositions. I also understand that SEA seeks eight-figures-worth of reparations. Accordingly, as long as the parties remain diligent in moving discovery forward, I am amenable to extending the discovery deadlines if necessary. The parties, however, will need to justify any extension requested, and provide details supporting the request, *e.g.*, if the parties request a discovery extension, they will need to describe the additional discovery needed, and explain why the parties need the additional requested number of days (as opposed to a shorter period). Large numbers alone do not provide a sufficient reason to extend discovery.

In the meantime, the parties are to continue providing updates regarding the status of discovery in future joint status reports, which continue to be due on the first business day of every month. Failure to make meaningful progress in discovery will be considered in the event there is a motion to extend discovery.

SEA's Expert Disclosure and Report. In JSR2, the parties dispute when SEA should serve its expert disclosure and report; SEA proposes November 17, 2025, and OOCL proposes November 7, 2025. The parties agree that OOCL's rebuttal report would be due December 1, 2025. OOCL argues that it will need more than two weeks to produce a rebuttal expert report. I note that the two-week period from November 17, 2025, through December 1, 2025, includes the Thanksgiving holiday. Accordingly, I find OOCL's position to be more persuasive, and will require SEA to disclose its expert witness and produce its expert report by November 7, 2025.

Mediation. SEA states that mediation would be potentially helpful. It requests an order requiring a preliminary conference with CADRS, or, alternatively, a settlement judge. SEA also represents that it believes that OOCL has not contacted CADRS regarding a preliminary conference. OOCL states that mediation would not be productive at this time.

I will not require the parties to participate in a mediation conference at this time. SEA's complaint largely focuses on allegedly unjust and unreasonable demurrage and detention charges. Whether demurrage and detention charges are unjust and unreasonable is a fact-specific inquiry. (*See Interpretive Rule on Demurrage and Detention Under the Shipping Act*, 85 FED. REG. 29638, 29642 (noting that each case would be decided on its own facts); *see also TCW, Inc. v. Evergreen Shipping Agency (America) Corp.*, Dkt. No. 1966(I), 2025 WL 516256, at *8 (FMC Feb. 13, 2025) (noting that in determining the reasonableness of a charge, "all other considerations and the specific factual circumstances of the case" are assessed)). Resolution of this proceeding by settlement may be more likely after the parties have completed discovery.

It is unclear whether OOCL has contacted CADRS. The Commission's rules provide that "the parties must participate in a preliminary conference with" CADRS. (46 C.F.R. § 502.64(a)). If OOCL has not yet done so, OOCL should contact CADRS before the next joint status report.

Counterclaim. OOCL's Verified Answer of December 12, 2024, included a counterclaim. On March 31, 2025, before this case was reassigned to the undersigned, Judge Alex M. Chintella granted SEA's motion to dismiss the counterclaim, and denied OOCL's request to amend its counterclaim. On July 30, 2025, the Commission affirmed the dismissal of the counterclaim, but remanded the matter to permit OOCL to amend its counterclaim. In JSR2, OOCL requests a schedule regarding its counterclaim.

As set forth below, OOCL will have two weeks from the date of the Commission's order to file its amended counterclaim. SEA will then have 25 days to answer or otherwise respond.²

Schedule. The parties are **HEREBY ORDERED** to follow this schedule:

OOCL's Amended Counterclaim	August 13, 2025
SEA's Answer/Response to Amended Counterclaim	September 8, 2025
Complete Document Productions	September 30, 2025
Complete Fact Depositions	October 31, 2025
Service of Expert Report by Complainant	November 7, 2025
Service of Rebuttal Expert Report by Respondent	December 1, 2025
Close of Expert Discovery	December 1, 2025
Complainant's brief, proposed findings of fact, and appendix	January 9, 2026
Respondent's brief, responses to proposed findings of fact, proposed findings of fact, and appendix	February 17, 2026
Complainant's reply brief and responses to proposed findings of fact	March 3, 2026

In addition, the parties remain required to file a joint status report on the first business day of the month.

Richard C.
Ambrow Jr -S
Richard Ambrow
Administrative Law Judge

Digitally signed by Richard C. Ambrow Jr -S
Date: 2025.08.05 06:33:14 -07'00'

² OOCL represents that it has commenced the process of serving Samsung Electronics Company, Ltd., via the procedures outlined in the Hague Convention.